



U.S. Department
of Transportation

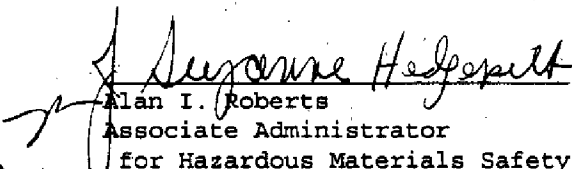
Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 10089 (EXTENSION)
ORIGINAL April 13, 1989

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10089 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 24 1994

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Phillips Petroleum Company
Bartlesville, OK

July 11, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 10089

APR 13 1989

1. Phillips Petroleum Company, Bartlesville, Oklahoma, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of the hazardous material described in paragraph 3 below for transportation in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the use of non-DOT specification stainless steel cylinders for the shipment of potassium metal, classed as a flammable solid, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Callery Chemical Company, Pittsburgh, Pennsylvania - PTE-1

2. BASIS. This exemption is based on Phillips Petroleum Company's application dated November 17, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111, and the public proceeding thereon:

Callery Chemical Company's application dated November 28, 1988.

3. HAZARDOUS MATERIALS (Descriptor and class). Potassium, metal, classed as a flammable solid.
4. PROPER SHIPPING NAME (49 CFR 172.101). Potassium, metal.
5. REGULATION AFFECTED. 49 CFR 173.206, 178.61.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.
7. SAFETY CONTROL MEASURES.
 - a. Packagings prescribed are steel cylinders conforming with all requirements of DOT Specification 4BW (49 CFR 178.61), except that the material of construction is Type 304, 316 or 347 stainless steel.
 - b. Each cylinder must have a marked service pressure of 240 psig and contain a maximum of 750 pounds of potassium, metal.
 - c. Each cylinder must be prepared and shipped as follows:
 - (1) Outage must be at least 9 percent at 208 ° F.
 - (2) Each cylinder must be equipped with a steel valve and fittings protection cap or collar, or be packed in strong wooden boxes in such a manner to protect the valve and fittings. The cylinder does not need a safety relief device.

(3) Any cylinder with more than one opening in each head must have such openings reinforced so that it is as strong as the cylinder wall or be separated from each other by ligaments at least 1.5 times the average diameter of the 2 adjacent openings without reinforcement.

(4) The lading must be covered with a nitrogen blanket.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.

b. Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire or accident.

c. Each cylinder must be reinspected and retested in accordance with 49 CFR 173.34(e), once every 5 years as prescribed for DOT Specification 4BW cylinders.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. March 31, 1991.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

APR 13 1989

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA, USCG, FRA.